

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S MOTION TO COMPEL DISCOVERY
FROM RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

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Complainant MCS Industries, Inc. (“Complainant”), by and through its undersigned attorneys, hereby moves to compel (1) production of documents in response to Requests for Production (the “MCS RFPs”) and (2) answers to Interrogatories (the “MCS Interrogatories” and, together with the MCS RFPs, the “MCS Discovery Requests”) propounded upon Respondent MSC Mediterranean Shipping Company SA (“Respondent”).¹ This Motion to Compel (“Motion”) sets forth Complainant’s efforts to confer in good faith and obviate the necessity of this Motion, copies of the MCS Discovery Requests and the responses thereto, and a request for relief and supporting arguments as required by 46 C.F.R. § 502.150. It is supported by the Declaration of Matthew J. Reynolds (“Reynolds Declaration”) and the exhibits attached thereto.

Complainant’s Verified Complaint in this action (the “Complaint”) alleges five causes of action against Respondent under the Shipping Act, contending that Respondent has violated the Shipping Act by:

- engaging in unjust and unreasonable practices relating to receiving, handling, storing, and delivering the property of Complainant and, upon information and belief, other shippers (Count I);
- providing service that is not in accordance with the rules and practices in Complainant’s service contract with Respondent (the “Service Contract”) (Count II);
- unfairly and unjustly discriminating against Complainant in favor of other shippers (e.g., shippers paying Respondent higher “spot market” prices) in the matter of rates or charges with respect to the ports identified in the Service Contract (Count III);
- unduly and unreasonably preferring and advantaging other shippers (e.g., shippers paying Respondent higher “spot market” prices), to the prejudice and disadvantage of Complainant, with respect to the ports identified in the Service Contract (Count IV); and
- unreasonably refusing to deal or negotiate with Complainant with respect to the Service Contract and the service provided pursuant to it (Count V).

¹ 46 C.F.R. § 502.150.

The MCS Discovery Requests seek discovery of evidence that is relevant to Complainant's five causes of action and Respondent's defenses, including:

- The course of conduct between Complainant and Respondent pursuant to the Service Contract between them;
- How Respondent allocated space on vessels sailing the lines covered by the Service Contract;
- What cargo Respondent actually carried on those lines pursuant to any service contract or not pursuant to any service contract;
- Whether there was available cargo space on Respondent's vessels during the period in which Complainant was not receiving its allocated space under its Service Contract;
- The financial performance and corporate structure of Respondent during the periods in which Respondent alleges it faced "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and for which Respondent has pled that any "alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom";
- The defenses that Respondent has asserted with respect to Complainant's claims (such as the timeliness of Complainant's requests to book cargo space, Respondent's allegation that the acts of third parties—e.g., intermediaries and agents—over which Respondent claims it had no direction or control are the cause of Complainant's claimed damages, and Respondent's invocations of *force majeure* during the COVID-19 pandemic);
- Respondent's document retention practices; and
- The identity of individuals with knowledge about these same topics.

From the very early days of this proceeding, Respondent has sought to impose preconditions to complying with its discovery obligations that are neither required by the Federal Maritime Commission's Rules of Practice and Procedure (the "Rules") nor appropriate to this particular case. Respondent's efforts to evade its discovery obligations are inconsistent with the Scheduling Order in this action, which tracks in relevant part the Joint Status Report and Proposed Discovery Schedule to which Respondent agreed.² Respondent has also flatly refused to provide

² See Scheduling Order, Dkt. 15 at 1; Joint Status Report and Proposed Discovery Schedule, Dkt. 13 at 2.

discovery that relates to certain claims in the Complaint, despite the fact that Respondent did not file a motion to dismiss any of Complainant's causes of action in this case. Respondent appears to think that it is the arbiter of what it should produce before the Commission. This also is not the first time in recent months that Respondent has failed to comply with its discovery obligations: the Presiding Officer issued an order compelling Respondent to produce documents in another case less than two months ago.³

Despite several lengthy teleconferences and extensive correspondence between counsel, both before and after Respondent served its Responses and Objections to the MCS RFPs, the parties have reached an impasse with respect to many of Complainant's requests. This impasse is demonstrated even more clearly by Respondent's objections to the MCS Interrogatories, in which Respondent *refused to provide a single substantive response*, instead referring to its improperly limited document production and the very same objections about which the parties have reached impasse in relation to the MCS RFPs. Having previously raised these issues with the Presiding Officer on October 5, 2021,⁴ and cognizant of the discovery schedule set forth in the Scheduling Order, Dkt. 15, MSC Industries now brings this dispute to the Presiding Officer, and requests that this Motion be granted.

I. BACKGROUND

As detailed in the Complaint, Complainant and Respondent entered into a written service contract within the meaning of 46 U.S.C. Section 40102(21) for the 2021 shipping year in which the parties agreed that Complainant would ship, and Respondent would carry, a certain Minimum

³ See Order on Motion to Compel and for Sanctions, *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc, et al.*, Dkt. No. 20-14, Doc. No. 74 (September 27, 2021).

⁴ See Complainant MCS Industries, Inc.'s Submission of Disputes Concerning Scope of Initial RFPs, Dkt. 16.

Quantity Commitment (“MQC”) of cargo during the term of the Service Contract. Such shipments were to be reasonably spread throughout the term of the Service Contract. The Complaint alleges a course of unjust and unreasonable conduct in which Respondent failed to provide the agreed space for Complainant’s cargo on Respondent’s ships and unreasonably refused to deal or negotiate with Complainant in that connection, in violation of the Shipping Act. The Complaint further alleges, upon information and belief, that Respondent discriminated against Complainant and instead gave other shippers preferential treatment, including by allocating space that should have carried Complainant’s cargo to and from the ports specified in the Service Contract to shippers that purchased space on a spot-market basis at higher prices.

Consistent with and in furtherance of these allegations, on September 24, 2021 Complainant served the MCS RFPs,⁵ seeking focused discovery from Respondent of documents and communications concerning Complainant, its Service Contract, and its cargo; Respondent’s scheduling, allocation of space, and pricing on relevant sailings of its vessels from the three Chinese ports covered by the Service Contract during the relevant months of the current shipping year; and Respondent’s financial performance during the current and prior shipping years, which is relevant to Respondent’s claims of “unprecedented dislocations” and “substantial operational difficulties” and “challenges”, and to Respondent’s invocation of force majeure as a defense to any alleged nonperformance.⁶ On October 7, 2021, Complainant served the MCS Interrogatories, which closely tracked the MCS RFPs in seeking information that is directly relevant to the pending claims and defenses raised by the parties, as well as the identities of persons with relevant

⁵ Reynolds Decl. Ex. 1.

⁶ See Verified Answer of Respondent MSC Mediterranean Shipping Company S.A., Dkt. 6 (the “Answer”), ¶¶ 2, 15, 32 & at 17 (“Any alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom.”).

knowledge and information.⁷ The parties have entered into a robust confidentiality stipulation, which the Presiding Officer recently entered as a protective order in the case,⁸ allowing designation of documents and information as “Confidential” or, for documents and information to which other parties should not have direct access, “Confidential Outside Counsel Eyes Only”.⁹

II. LEGAL STANDARD

The Commission’s Rules entitle parties to discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter.”¹⁰ The Commission’s Rules authorize requests to produce documents including data or data compilations “stored in any medium from which information can be obtained either directly or, if necessary, after translation by the responding party into a reasonably usable form.”¹¹ In responding to interrogatories, the responding party may answer by producing business records but must “specify[]the records that must be reviewed, in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could.”¹²

When a party from whom discovery is sought raises undue burden or cost of discovery as an objection, they “must show that the information is not reasonably accessible because of undue

⁷ Reynolds Decl. Ex. 2.

⁸ See Order Entering Confidentiality Stipulation and Protective Order, Dkt. 20.

⁹ See Joint Motion for Entry of Confidentiality Stipulation and Proposed Protective Order with Appendix, Dkt. 19.

¹⁰ 46 C.F.R. § 502.141(e)(1).

¹¹ 46 C.F.R. § 502.146(a)(1)(i).

¹² 46 C.F.R. § 502.145(d)(1).

burden or cost.”¹³ Even when the producing party makes such a showing, “the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause.”¹⁴

“In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.”¹⁵ “A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.” *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009); *see also, e.g., Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (“a party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance); *Champion Foodservice, LLC v. Vista Food Exchange, Inc.*, No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (excluding evidence as a sanction against party whose “purported ‘compliance’ [with its discovery obligations] has been based on its own self-serving definition . . . of what constitutes relevant discovery under the Federal Rules” and “applying its own contrived interpretation of what the discovery rules require”).

III. ARGUMENT

Complainant sets forth below, in accordance with Paragraph 11 of the Initial Order in this proceeding, the text of each MCS Discovery Request at issue, Respondent’s response, the attempts to secure a sufficient response, and why the response is insufficient. For efficiency’s sake, and in light of the substantial overlap between the MCS RFPs and the MCS Interrogatories, the MCS Discovery Requests are grouped together by general topic and Respondent’s response thereto, with supporting arguments applicable to each group. Complete copies of the MCS Discovery Requests,

¹³ 46 C.F.R. § 502.141(e)(2)(i).

¹⁴ *Id.*

¹⁵ 46 C.F.R. § 502.12.

including all instructions and definitions, and Respondent's responses and objections thereto, are attached to the accompanying Reynolds Declaration.¹⁶

A. Respondent's Improper General Objections to the MCS Discovery Requests Seek to Avoid Proper Discovery Entirely

In addition to its specific objections to the MCS Discovery Requests, which are discussed topically below, Respondent made general objections to the MCS Discovery Requests that contend that "[d]iscovery already exchanged between the parties demonstrates that there is no basis for any of Complainant's Shipping Act claims and that this proceeding was abusive and should never have been filed" and that "Complainant's attempt to make this case more than a simple breach of contract case . . . depends on a series of entirely unsupported and implausible assertions."¹⁷

These objections, impermissibly based on Respondent's own self-serving interpretation of initial discovery, are merely attempts by Respondent to avoid its discovery obligations without actually challenging the sufficiency of Complainant's Complaint. These objections improperly seek to achieve in the context of discovery what Respondent could have sought, but chose not to seek, by means of a motion to dismiss or for judgment on the pleadings. Instead of requesting that the Presiding Officer rule on the legal sufficiency and scope of Complainant's claims, Respondent arrogates that authority to itself, and thereby seeks to deprive Complainant of the very information that is necessary to prove the claims advanced in the Complaint.

Respondent notably does not argue in these objections that the MCS Interrogatories are not relevant to the claims in the Complaint. Respondent cannot simply "ascribe unto itself the role of judge and jury" by unilaterally refusing to respond to the MCS Discovery Requests based on its own assertion that Complainant's claims lack merit. *Novelty, Inc.*, 265 F.R.D. at 378.

¹⁶ Reynolds Decl. Exs. 1–4.

¹⁷ Reynolds Decl. Ex. 4 at 1–2; Reynolds Decl. Ex. 3 at 2.

Perplexingly, Respondent also objects to the MCS Interrogatories based on the timing of their service.¹⁸ Complainant served the MCS Interrogatories on October 7, 2021, more than two months before the December 28, 2021 deadline to serve such discovery (and, notably, after Respondent had already served both RFPs *and* interrogatories on Complainant). Contrary to Respondent's objection, Complainant never represented that it believed any of the MCS Interrogatories were not necessary. To the contrary, on a November 2, 2021 call, counsel discussed that some of the parties' disputes over the scope of the *MCS RFPs* might effectively be resolved by Respondent's responses to the MCS Interrogatories. Instead, Respondent refused to provide a substantive response to a single one of the MCS Interrogatories. Far from any alleged abusive motive, Complainant is simply seeking to propound relevant written discovery that is directly relevant to the claims and defenses pending in this action.

B. Interrogatories 1–3, 5–7: Respondent's Refusal to Identify Individuals with Knowledge Impedes Complainant's Ability to Identify Potential Deponents and Determine the Sufficiency of Respondent's Document Production

Complainant's Interrogatory No. 1: Identify each person from whom/which You obtained information in order to answer these Interrogatories.

Respondent's Response to Interrogatory No. 1. Persons who have information relevant to the proceeding are identified in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. The objections contained herein are made by undersigned counsel and are supported by those documents as well.

Complainant's Interrogatory No. 2: Identify each document You referred to in order to respond to these Interrogatories.

Respondent's Response to Interrogatory No. 2. Documents contained in the productions of Complainant and MSC on November 5, 2021, in response to each party's First Requests for Production of Document, support the objections contained herein.

¹⁸ Reynolds Decl, Ex. 4 at 3.

Complainant's Interrogatory No. 3: Identify each person with knowledge of the facts underlying MCS's claims against You and/or Your defenses to MCS's claims.

Respondent's Response to Interrogatory No. 3. MSC objects to this Interrogatory on the basis that persons with knowledge of the underlying facts that may remain relevant to this proceeding are identified in the parties' Initial Disclosures and in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents, and that Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 5: Identify each person who/that acted on Your behalf concerning MCS or MCS Cargo.

Respondent's Response to Interrogatory No. 5. MSC objects to this Interrogatory on the basis that it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request is also vague in that it does not make clear what is meant by "acted on [MSC's] behalf" and would also require MSC to potentially identify numerous persons who dealt with MCS and the contract, but did not have important roles with respect to the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC during the time period relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 6: Identify each person who/that communicated with MCS or any of the Intermediaries concerning MCS or MCS Cargo.

Respondent's Response to Interrogatory No. 6. MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request would also require MSC to potentially identify numerous persons who communicated with MCS concerning MCS or MCS cargo but did not have important roles with respect the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly

burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 7: Identify each person who/that received or receives on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Interrogatory No. 7: MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request is also vague in that it does not make clear what is meant by "acted on [MSC's] behalf." MSC further objects to this Interrogatory as overly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Prior to Respondent's written objections and complete refusal to answer any of the MCS Interrogatories, during the November 2, 2021 call between counsel, Complainant offered to limit its document requests and the corresponding interrogatories seeking the identity of individuals to those individuals with substantive knowledge of and/or decision-making authority concerning the matters at issue in this case—excluding the reportedly numerous individuals who only communicated concerning Complainant's cargo that was, in fact, carried by MSC (and is therefore not directly implicated by Complainant's claims).

2. *Relief Sought*

In its objections to Interrogatories 1 through 3 and 5 through 7, as well as a number of other interrogatory objections discussed below, Respondent merely refers generally to the parties' respective document productions. While a responding party may answer an interrogatory by producing business records, Respondent must "specify[]the records that must be reviewed, in sufficient detail to enable [Complainant] to locate and identify them as readily as [Respondent] could."¹⁹ Respondent has failed to do so. The Presiding Officer should order Respondent to (1) identify all individuals with knowledge of facts relevant to the claims and defenses in this matter, (2) identify with specificity any and all documents that Respondent relied upon in responding to these Interrogatories, and (3) identify with specificity each document that Respondent contends is responsive to each of Complainant's Interrogatories.

C. RFPs 5-7: Respondent's Refusal to Produce Communications Concerning Complainant Deprives Complainant of Essential Information Relevant to Its Causes of Action

Complainant's Request No. 5: All documents and communications with MCS.

Respondent's Response to Request No. 5. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is also vague in that its request for "documents . . . with MCS" is senseless. To the extent that documents reflecting communications with MCS are relevant and reasonably calculated to lead to the discovery of admissible evidence, MSC will provide them as stated in response to other Requests that overlap with this Request.

Complainant's Request No. 6: All documents and communications with any person or entity concerning MCS or MCS Cargo, including any of the Intermediaries.

Respondent's Response to Request No. 6. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is

¹⁹ 46 CFR § 502.145(d)(1).

also vague in that its request for “documents . . . with any person” is senseless. To the extent that documents reflect communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Complainant’s Request No. 7: All documents and communications concerning MCS or MCS Cargo.

Respondent’s Response to Request No. 7. This Request appears to entirely duplicate Requests Nos. 5 and 6, and MSC incorporates by reference its responses and objections to Requests Nos. 5 and 6. To the extent that documents reflect communications concerning cargo that MCS demonstrates it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Complainant’s Argument:

1. Reasons for Impasse

In the course of negotiating the scope of Complainant’s Requests 5 through 7, Complainant offered to narrow those requests to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. Respondents sought to narrow these requests to only those communications relating to particular bookings requests, arguing that the Complaint is nothing more than a breach of contract action and that Complainant should be required to make further evidentiary demonstrations to Respondent prior to any obligation of Respondent to provide discovery (discussed further below). During the November 2, 2021 teleconference, Respondent agreed to provide discovery relating to specific attempts to book Complainant’s cargo and any correspondence complaining of difficulties in booking carriage, and agreed to reformulate its objections and responses to reflect its intended scope of production. To date, however, no such amended response has been forthcoming, and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production in response to these requests.

2. *Relief Sought*

Requests 5 through 7 seek documents and communications with and about Complainant and Complainant's cargo. These categories are essential to Complainant's causes of action alleging discriminatory and preferential treatment, as well as refusal to deal with Complainant in providing service pursuant to the Service Contract—necessarily implicating not only communications between the parties, but also documents and communications *internal* to Respondent, and documents and communications with *intermediaries*, concerning Complainant, Complainant's cargo, and the Service Contract. The latter two categories are especially important because, while Complainant's own records may contain direct communications between the *parties*, clearly it would not contain Respondent's internal communications, and much of the relevant communication here was necessarily through intermediaries, including Complainant's agent and Respondent's booking agents. Although the Presiding Officer has issued subpoenas to several of these intermediaries, Complainant should not be forced to procure from non-parties documents and communications that are already in Respondent's possession, custody, or control. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 5 through 7, subject to the time and geographic limitations proposed by Complainant.

D. RFPs 8–10, 13; Interrogatory 8: Respondent's Refusal to Provide Discovery Relevant to Complainant's Attempts to Book Cargo Pursuant to the Service Contract Denies Complainant Access to Documents That Go to the Heart of the Conduct Alleged in the Complaint.

Complainant's Request No. 8: All documents and communications concerning any booking or attempted booking of transportation by You of MCS Cargo, including Your acceptance or rejection of each such booking or attempted booking and the reasons therefor.

Respondent's Response to Request No. 8. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning bookings and port ranges as to

which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its bookings or attempted bookings complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 9: All documents and communications concerning the tender to You of any MCS Cargo.

Respondent's Response to Request No. 9. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning tenders as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its tenders or attempted tenders of cargo that was allegedly not carried in violation of the Contract complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the tender of cargo that MCS demonstrates it tendered under the MCS Service Contract and that was not in fact carried.

Complainant's Request No. 10: All documents and communications concerning any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA, including the date each such notice was sent to You, the date each such notice was received by You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was sent to You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was received by You, and the actual sailing date of Your vessel for which each such notice was provided.

Respondent's Response to Request No. 10. MSC objects to this Request on the basis that the phrase "notice provided to You of MCS's space requirements" is vague; nor is it clear what difference, if any, is intended between the phrase "notice provided to You of MCS's space requirements," and the terms "booking" or "attempted booking" in Request No. 8. MSC further objects to this Request as unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, to the extent it is understandable, it appears to seek documents and communications concerning bookings and port ranges as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its provision of such "Notice" complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 13: All documents and communications concerning any MCS Cargo not accepted by You for transportation, including the reasons therefor.

Respondent's Response to Request No. 13. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning cargo as to which MCS is making no claim and seeks information as to the carriage of cargo even though the Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry (and does not allege or provide any information to establish that MCS' bookings or attempted bookings complied with the Contract.). Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Interrogatory No. 8: Identify each instance in which You contend that MCS, in an untimely or otherwise improper fashion, requested space for any MCS Cargo or shipment on any MSC sailing, provided notice of its space requirements for shipments to be tendered under the OCA, and/or tendered any MCS Cargo or shipment under the OCA, including the following information for each such instance:

- a. the date and means of the request/tender,**
- b. the date and means of Your response to the request/tender,**
- c. the reason(s) You considered the request/tender to be untimely or improper, and**
- d. identify all persons with knowledge of the matters requested in this Interrogatory.**

Respondent's Response to Interrogatory No. 8. MSC objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to Requests 5 through 7, Complainant offered to narrow Requests 8 through 10 and 13 by both time and geography, to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. Respondents again sought to narrow these requests to only those communications relating to specifically identified booking requests. During the November 2, 2021 teleconference, Respondent agreed to provide discovery concerning any attempts to book cargo for Complainant or any correspondence complaining of the difficulties in booking carriage, and agreed to reformulate its objections and responses to reflect its intended scope of production. To date, however, no such amended response has been forthcoming and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production.

2. Relief Sought

Requests 8 through 10 and 13 and Interrogatory 8 seek documents and communications concerning attempts by Complainant or intermediaries to book carriage of Complainant's cargo pursuant to its Service Contract with Respondent. As Complainant has repeatedly explained to Respondent's counsel in writing and by telephone, Complainant's causes of action are not merely premised on a list of booking requests and rejections or cancellations thereof, but instead on a pattern of behavior by Respondent in which Complainant and its agent were repeatedly fobbed off by Respondent and/or Respondent's booking agents despite ongoing requests and follow-ups for information and confirmations concerning Complainant's space allocations pursuant to the Service Contract and the availability of space on Respondent's sailings, and were thereby prevented from even making booking requests. These requests go to the heart of that alleged conduct that Complainant contends violates the Shipping Act. Complainant requests that Respondent be

compelled to produce all documents and communications responsive to Requests 8 through 10 and 13 and Interrogatory 8, with the limitations of time and geography proposed by Complainant.

E. RFPs 11–12: Respondent’s Refusal to Provide Documents Concerning Successful Carriage of MCS Cargo Deprives Complainant of Documents Relevant to Respondent’s Defense That Complainant Failed to Properly Request Carriage

Complainant’s Request No. 11: All documents and communications concerning any MCS Cargo accepted by You for transportation.

Respondent’s Response to Request No. 11. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant’s Request No. 12: All documents and communications concerning transportation provided by You of MCS Cargo.

Respondent’s Response to Request No. 12. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry. The request also appears duplicative of Request No. 11. Notwithstanding and without waiving the foregoing objections, MSC will, as stated in response to Request No. 11, provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant’s Argument:

1. Reasons for Impasse

During teleconferences between counsel, Complainant offered to narrow Requests 11 and 12 to documents relating to sailings scheduled for May through August 2021 from the Chinese ports at issue. Counsel also discussed that Complainant may not need the reportedly voluminous

documents and communications concerning the *actual carriage* of Complainant's cargo by Respondent, and that Complainant would be willing to limit these requests to documents and communications concerning the successful *booking* of carriage. Respondents contend that they should not have to produce any documents relating to successful carriage of Complainant's cargo, because the Complaint relates to Respondent's failures to carry Complainant's cargo.

2. *Relief Sought*

Requests 10 and 11 properly seek documents and communications relating to Respondent's defenses that Complainant's claims are barred by Complainant's own alleged "inaction, negligence or other fault" and that Complainant's claimed damages "were proximately, directly, and solely caused by the acts of third persons over whom MSC had and has no direction or control."²⁰ Documents and communications demonstrating the process by which Complainant or its agent *successfully* booked carriage are relevant to show the course of conduct between the parties, and Complainant believes such documents and communications will demonstrate that there was no meaningful difference in the actions of its agent with respect to successful and unsuccessful requests to book with Respondent and Respondent's booking agents, undercutting Respondent's defenses in this regard. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 10 and 11, with the limitations of time and geography proposed by Complainant and the limitation to documents and communications concerning successful *booking* (as opposed to the actual carriage) of Complainant's cargo.

²⁰ Answer at 17.

F. RFPs 14–15; Interrogatories 9–10: Respondent’s Refusal to Provide Discovery Relating to Its Assertions of Force Majeure Improperly Deprives Complainant of Discovery Concerning Respondent’s Own Defense That Nonperformance Was Excused by Force Majeure

Complainant’s Request No. 14: All documents and communications concerning any Force Majeure event affecting the OCA or Your obligations or performance under the OCA, including any notice or notification of any Force Majeure event pursuant to the OCA.

Respondent’s Response to Request No. 14. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. MSC also objects to this request to the extent that it seeks production as to matters of common knowledge that are well known to MCS, given that the maritime trade press, among other sources, is routinely reporting unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. Notwithstanding and without waiving the foregoing objections, MSC will provide documents responsive to this request that relate to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant’s Request No. 15: All documents and communications concerning any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Respondent’s Response to Request No. 15. This request duplicates Request No. 14, and MSC incorporates its objections and response to that Request. MSC will provide responsive documents as to force majeure notifications relating to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant’s Interrogatory No. 9: Identify any Force Majeure event that You contend affected the OCA or MSC’s obligations or performance under the OCA, including the date and manner of any notice or notification of any Force Majeure event pursuant to the OCA.

Respondent’s Response to Interrogatory No. 9. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, including as to time period. MSC further objects to the extent the Interrogatory seeks production as to matters of common knowledge that are well known to MCS, given that the national and maritime trade press, among other sources, have routinely reported

throughout the relevant time period unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 10: Identify any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Respondent's Response to Interrogatory No. 10. MSC objects to this Interrogatory, because it appears to entirely duplicate Interrogatory No. 9, and incorporates its responses and objections to Interrogatory No. 9. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

During the November 2, 2021 teleconference, Respondent indicated that it would not provide discovery relating to assertions of force majeure relating to any party other than Complainant, and that Complainant should already be aware of any notice of force majeure to it.

2. Relief Sought

Requests 14 and 15 and Interrogatories 9 and 10 seek discovery directly relating to Respondent's allegations in its answer of "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and its claimed defense that any "alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom".²¹ Request 14 calls for documents and

²¹ Answer ¶¶ 2, 15, 32 & at 17.

communications relating to any alleged force majeure event affecting Respondent's obligations under its Service Contract with Complainant, whether or not communicated to Complainant. Further, any invocation of force majeure, even relating to parties other than Complainant, is relevant to whether Respondent has genuinely experienced forces or conditions outside of its control that would excuse performance under the Service Contract. Respondent cannot put a matter at issue by raising it as a defense in its answer and then refuse to provide discovery concerning that very defense. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 14 and 15, and to answer Interrogatories 9 and 10.

G. RFPs 23–24; Interrogatory 17: Respondent's Refusal to Respond to Requests Relating to Sailings That Did Not Occur and Alternative Sailings Offered to Complainant Deprives Complainant of Discovery Relating to Respondent's Defenses

Complainant's Request No. 23: Documents sufficient to show any sailing of any vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Respondent's Response to Request No. 23. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting the sailing status of any vessel on which MCS demonstrates that it booked or attempted to book cargo under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 24: All documents and communications concerning any vessel or sailing offered by You to MCS as an alternative to any booking or attempted booking by MCS or any other person of transportation by You of MCS Cargo, or any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Request No. 24. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting alternatives MSC offered to carry any cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried on voyage for which the booking was made or attempted.

Complainant's Interrogatory No. 17: Identify any planned sailing of any of Your vessels on any of the routes covered by the OCA that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Respondent's Response to Interrogatory No. 17. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to other requests, Complainant offered to narrow Requests 23 and 24 to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. During the November 2, 2021 teleconference, Respondent agreed to reformulate its objections and responses to reflect its intended scope of production. However, no such amended response has been forthcoming, and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production.

2. *Relief Sought*

Requests 23 and 24 and Interrogatory 17 seek information concerning Respondent's defenses that the damages Complainant has suffered "were proximately, directly, and solely caused by the acts of third persons over whom MSC had and has no direction or control", that "any damages Complainant allegedly incurred resulted from its own inaction, negligence or other fault", and that "MSC's practices were neither unjust nor unreasonable".²² Complainant has reasonably and narrowly requested information concerning (1) the contention that the cancellation or other failure of any relevant sailings to take place was outside of Respondent's control and (2) efforts by either Complainant or Respondent to mitigate injury to Complainant by securing space on alternate sailings. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 23 and 24, with the limitations of time and geography proposed by Complainant.

H. RFPs 5–15, 23, 24: Respondent's Refusal to Respond to MCS RFPs Unless Complainant First "Demonstrate[s]" Its Case Is Legally Baseless and Deprives Complainant of Discovery Relevant and Necessary to Its Causes of Action

The requests implicated by this argument have already been reproduced in full above, and for the sake of brevity are not reproduced again here.

Complainant's Argument:

1. Reasons for Impasse

Respondent objects to Requests 5 through 15, 23, and 24 and purports to limit its responses to documents relating only to "cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried." Complainant has expended considerable time and energy since the very early days of this case explaining to Respondent that

²² Answer at 17.

Complainant's causes of action implicate not merely a list of specific booking confirmations and rejections, but a course of conduct in which Complainant and its agent were repeatedly fobbed off by Respondent and/or its booking agents, even when Respondent's failure to allocate space to Complainant pursuant to the Service Contract was brought directly to Respondent's attention. Each time that Complainant has voluntarily provided Respondent with information in this connection, Respondent has simply "moved the goal posts", claiming that Complainant's identification of the time periods, lines of service, and performance metrics at issue was insufficient and asking for more information before Respondent will comply with its discovery obligations.

During the November 2, 2021 conference, Complainant offered to limit these requests to documents and communications relating specifically to sailings from the ports at Qingdao, China and Tianjin, China to California between May and August 2021. Counsel for Respondent represented that it would not limit its document production to formal requests booked by Complainant and agreed to restate its objection to Requests 5 through 15, 23, and 24 to reflect more accurately the scope of documents Respondent would produce. As of this filing, however, Respondent has not done so, and after review of Respondent's document production, Complainant is not able to determine the completeness of Respondent's response to any of these requests.

2. Relief Sought

As explained in more detail above, Requests 5 through 15, 23, and 24 seek documents and information relevant to each of Complainant's causes of action: i.e., that Respondent violated the Shipping Act by engaging in unjust and unreasonable conduct (Count I) that was inconsistent with the Service Contract (Count II), that unfairly discriminated against Complainant (Count III), giving undue preference to other shippers with respect to the ports identified in the Service Contract (Count IV), and that constituted an unreasonable refusal to deal with Complainant on the Service

Contract (Count V).²³ Respondent instead has improperly sought to narrow this case to a set of specific booking requests and denials, despite the fact that the Complaint alleges a broader course of conduct encompassing not only specific denials of previously made bookings, but also a practice of fobbing Complainant off, and thereby denying Complainant the *opportunity* to book cargo pursuant to the Service Contract in the first instance. Complainant requests that Respondent be compelled to answer these Requests, as limited by the proposals from Complainant discussed above, without requiring any additional “demonstrat[ion]” by Complainant.

I. RFPs 26–27, 29–30; Interrogatories 11-12: Respondent’s Refusal to Identify Potential Witnesses Impedes Complainant’s Ability to Identify Potential Deponents and Determine the Sufficiency of Respondent’s Document Production

Complainant’s Request No. 26: Documents sufficient to identify all persons who communicated on Your behalf with MCS or any other person acting on MCS’s behalf concerning MCS Cargo.

Respondent’s Response to Request No. 26. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant’s Request No. 27: Documents sufficient to identify all persons who communicated on MCS’s behalf with You or any other person acting on Your behalf concerning MCS Cargo.

Respondent’s Response to Request No. 27. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint

²³ As detailed herein, these requests seek documents and communications with and concerning Complainant and Complainant’s cargo, including with intermediaries, Respondent’s invocations of force majeure with shippers during the COVID-19 pandemic, and blanked and alternative sailings on the lines of service identified in the Service Contract.

makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant's Request No. 29: Documents sufficient to identify all persons who receive on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under any Service Contract with You.

Respondent's Response to Request No. 29. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant's Request No. 30: Documents sufficient to identify all persons who allocate cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent's Response to Request No. 30. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase "persons who allocate cargo space" is vague and broad enough to cover virtually any person involved in cargo handling on MSC's vessels.

Complainant's Interrogatory No. 11: Identify each person with knowledge of Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent's Response to Interrogatory No. 11. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to

the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “regulations and practices for allocating cargo space” is vague and broad enough to cover virtually all aspects of cargo handling on MSC’s vessels.

Complainant’s Interrogatory No. 12: Identify each person who/that allocates cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent’s Response to Interrogatory No. 12. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “each person who/that allocates cargo space” is vague and broad enough to cover virtually any person involved in cargo handling on MSC’s vessels. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant’s Argument:

1. Reasons for Impasse

Respondent’s objections to Requests 26, 27, 29 and 30 and Interrogatories 11 and 12 are similar to its objections to Requests 6 through 15, 23, and 24. On the November 2, 2021 call counsel clarified a concern that these requests would require Respondent to identify individuals who were (1) involved with MCS cargo that *was* accepted for carriage, and thus not necessarily relevant to Complainant’ claims in the Complaint, or (2) involved with MCS cargo only for ministerial or data entry purposes. During that call, counsel for Complainant offered to narrow these requests to exclude those individuals whose only involvement with MCS cargo occurred

after that cargo was accepted for carriage, and that every possible ministerial, “call center” type individual at MSC who may have dealt with MCS cargo did not need to be named, and counsel for Respondent agreed to restate its objection to Requests 26, 27, and 29 to reflect more accurately the scope of documents Respondent would produce. Complainant hoped that this matter was resolved after the November 2, 2021 call. However, Respondents refused to answer substantively the MCS Interrogatories that could have clarified this issue, and as of this filing it is unclear from Respondent’s document production which individuals might be responsive to these Requests and Interrogatories, and thus candidates for potential deposition testimony in this case.

2. Relief Sought

Complainant is entitled to discovery of the identities of relevant individuals who made substantive decisions or communicated substantively regarding the allocation of—or failure to allocate—cargo space to Complainant under the Service Contract and the reasons for such conduct. Complainant therefore requests that Respondent be compelled to respond to these MCS Discovery Requests sufficiently to identify these individuals as requested.

J. RFPs 20-22, 25; Interrogatories 18-19: Respondent’s Refusal to Disclose the Capacity, Cost, and Allocation of Cargo on Respondent’s Vessels Improperly Conceals Information of Key Relevance to Complainant’s Causes of Action that Is Uniquely in Respondent’s Possession, Custody, and Control

Complainant’s Request No. 20: Documents sufficient to show the respective totals of cargo (in TEUs or FEUs) transported by You on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS’s space requirements for any shipment tendered or to be tendered under the OCA, that were (a) tendered to You pursuant to any Service Contract with any Shipper, or (b) transported by You not pursuant to any Service Contract with any Shipper.

Respondent’s Response to Request No. 20. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to

this request on the basis that the phrase “notice of MCS’s space requirements” is vague. MSC further objects to the request on the basis that it is apparently propounded in support of the entirely unsupported and implausible theory that MSC, in collusion with Respondent COSCO, is intentionally and willfully failing to comply with its obligations under the MCS Service Contract so that it can increase carriage on the spot market even though (a) the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried; (b) the Complaint acknowledges that, even in times of unprecedented demand and vessel sailing and supply chain disruptions, MSC has carried a substantial amount of cargo under the Contract; (c) MCS’s speculative assertions of collusion with COSCO in support of this purported scheme are entirely inconsistent with known facts, including that MSC does not have an alliance or other FMC agreement with COSCO; (d) if MSC did in fact have such a scheme it could have easily implemented it by simply declining to enter into a service contract with MCS, as is its right, or terminating its existing contract with MCS, as is also its right; and (e) the allegation ignores the well known current realities of international ocean shipping. The burden and expense of providing this data for multiple voyages months after the fact would far outweigh any likely benefit. Notwithstanding the reckless manner in which MCS has chosen to proceed, MSC has proposed an exchange of information as to MCS’s core assertion that MSC has not complied with its contractual obligations, which MSC believes will show that MSC has complied with those obligations and has attempted to work in good faith with MCS, and thus cause MCS’ invented Shipping Act claims to fall without the need for judicial intervention.

Complainant’s Request No. 21: Documents sufficient to show the prices charged for transportation by You of cargo pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS’s space requirements for any shipment tendered or to be tendered under the OCA.

Respondent’s Response to Request No. 21. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition to the objections stated with respect to Request No. 20, MSC further objects to the relevance and propriety of this request in that the confidential rates charged for transportation to shippers other than MCS have no relevance to this case since the Shipping Act does not permit claims of discrimination among shippers with respect to service under a service contract. See 46 U.S.C. §§ 41104(5) and (9).

Complainant’s Request No. 22: Documents sufficient to show the prices charged for transportation by You of cargo not pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person

booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Request No. 22. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21.

Complainant's Request No. 25: All documents and communications concerning Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent's Response to Request No. 25. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase "regulations and practices for allocating cargo space" is vague and broad enough to cover virtually all aspects of cargo handling on MSC's vessels.

Complainant's Interrogatory No. 18: For each sailing on which You transported cargo or shipment(s) for any Shipper from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, identify the vessel that made such sailing and provide the following information in the format provided in the Appendix hereto:

- a. State the date of departure from the respective loading port (i.e., Qingdao or Tianjin) for such sailing;**
- b. State the date of arrival at the discharge port (i.e., Los Angeles) for such sailing;**
- c. State the total cargo capacity (in TEUs or FEUs) of the vessel that made such sailing;**
- d. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of seven days prior to such vessel's cut-off date;**

- e. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's scheduled sailing date;**
- f. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel's actual sailing date;**
- g. Identify each Shipper whose cargo or shipment was carried on such sailing;**
- h. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing;**
- i. For each Shipper so identified, state the date(s) on which such Shipper booked the space for its cargo carried on such sailing;**
- j. For each Shipper so identified, state that Shipper's total contractual minimum quantity commitment with MSC, if any;**
- k. For each Shipper so identified, state the total volume of that Shipper's cargo (in TEUs or FEUs) carried on such sailing not pursuant to any Service Contract; and**
- l. For each Shipper so identified, state the price(s) charged for transportation by You of that Shipper's cargo or shipment on such sailing.**

Respondent's Response to Interrogatory No. 18. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried, and that the discovery in this case demonstrates that Complainant went weeks without contacting MSC during the period it now alleges MSC failed to carry its cargo. Further, MCS is not entitled to information regarding sailings from Qingdao from "May 1 through the present," because its Complaint was filed on August 3, 2021 and it has asserted that its issues were resolved after that date.

MSC further objects to this Interrogatory as unduly burdensome to the extent that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of

Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 19: For each of the dates listed below, identify each MSC vessel that was, as of each such date, scheduled for a future sailing from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, and, for each such vessel, state its total cargo capacity (in TEUs or FEUs), the total cargo capacity (in TEUs or FEUs) that was unbooked or available on such vessel as of each such date, and the scheduled date(s) of departure from the respective loading port (i.e., Qingdao or Tianjin) for such future sailing(s):

- a. April 8, 2021;
- b. April 29, 2021;
- c. May 8, 2021;
- d. May 12, 2021;
- e. May 24, 2021;
- f. July 2, 2021;
- g. July 7, 2021;
- h. July 8, 2021;
- i. July 21, 2021;
- j. August 4, 2021;
- k. August 12, 2021; and
- l. September 20, 2021.

Respondent's Response to Interrogatory No. 19 MSC objects to this Interrogatory, because it is vague, overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit its scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

MSC further objects to this Interrogatory because it is unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of

Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to other requests, Complainant offered to limit these requests geographically, to the ports at Qingdao, China and Tianjin, China, and clarified that “notice of MCS’s space requirements” is intended to encompass all sailings for which Complainant or any entity acting on behalf of Complainant gave notice of a desire to book cargo, and not merely sailings for which Complainant or its agent received an actual booking number. Complainant also requested, and Respondent agreed to provide, additional detail about the manner in which this information is collected, maintained, and accessible in Respondent’s systems, so that the parties could agree on the least burdensome manner of providing the requested data. To date, Respondent has not provided the requested additional detail.

2. Relief Sought

Requests 20 through 22 and 25 relate directly to Complainant’ allegations, upon information and belief, that Respondent engaged in a practice of failing to provide Complainant carriage at its contracted rates while offering carriage to other shippers at higher contracted or spot market rates, thus profiting from its alleged violations of the Shipping Act. The documents and information requested about Respondent’s actual carriage of cargo on the relevant lines of service during the relevant time periods, and the pricing associated with that carriage, are key to proving Complainant’s claims that Respondent’s alleged conduct:

- constitutes unjust and unreasonable practices that “are occurring on a normal, customary, and continuous basis” with respect to Complainant and, upon information and belief, other shippers (Count I of the Complaint),²⁴
- constitutes unfair and unjust discrimination, and undue and unreasonable prejudice and disadvantage, against Complainant (and undue and unreasonable preference for other shippers, including in particular spot market purchasers, whose cargo *was* carried during the relevant time periods) in the matter of rates or charges with respect to the ports identified in the Service Contract (Counts III and IV of the Complaint),
- constitutes, in light of the volumes of cargo actually carried by Respondent on the relevant lines of service during the relevant time periods, including volumes carried pursuant to spot market purchases at higher prices, an unreasonable refusal to deal or negotiate with Complainant (Count V of the Complaint).

Again, Respondent’s responses unilaterally and improperly seek to narrow Complainant’s causes of action in this case to a specific set of booking requests and denials, despite knowing that Complainant’s causes of action in this case expressly encompass a broader course of conduct. The information sought by these MCS Discovery Requests is critical to the adjudication of Complainant’s claims, including in particular its claims of discriminatory and/or preferential treatment, and is uniquely in the possession of Respondent. Respondent also misstates the allegations in the Complaint, which nowhere alleges unlawful collusion between Respondent and former Respondent COSCO SHIPPING Lines Co., Ltd (“COSCO”). Respondent’s reiteration of its demand that Complainant should be required to prove its “core assertion” *before* Respondent is obligated to respond to these MCS Discovery Requests is, as discussed above, legally baseless and inconsistent with the discovery obligations of parties under the Rules.

Complainant is entitled under the Rules to seek discovery relevant to its claims, Respondent’s defenses, and damages in this proceeding. Rather than argue that Requests 20 through 22 and 25 and Interrogatories 18 and 19 are not relevant to Complainant’s claims,

²⁴ 46 C.F.R. § 545.4.

Respondent appears to argue that Complainant's *claims* are not valid and that Respondent therefore need not respond to discovery requests relating to an "unsupported and implausible theory." Any argument that Complainant's claims were implausible, however, could and should have been made in the context of a motion to dismiss or motion for judgment on the pleadings. Respondent chose not to file any such motion and cannot now achieve a "pocket veto" of Complainant's claims, or unilaterally limit the scope of discovery in this case in an effort to preclude Complainant's ability to prove its claims, based on its own untested assertions. Complainant requests that Respondent be compelled to answer these Requests 20 through 22 and 25 and Interrogatories 18 and 19, subject to the limitations proposed by Complainant.

K. RFPs 17–19: Respondent's Refusal to Disclose Unbooked Space on Relevant Sailings Baselessly Withholds Information Relevant to Respondent's Alleged Unreasonableness in Failing to Provide Contracted Space, Discrimination, and Preferential Treatment of Other Shippers

Complainant's Request No. 17: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the date of each such booking or attempted booking.

Respondent's Response to Request No. 17. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Complainant's Request No. 18: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the scheduled vessel sailing date associated with each such booking or attempted booking.

Respondent's Response to Request No. 18. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Complainant's Request No. 19: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the actual vessel sailing date associated with each such booking or attempted booking.

Respondent's Response to Request No. 19. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific

voyages on which MCS properly booked, attempted to book, or tendered cargo under the contract but it was not carried.

Complainant's Argument:

1. Reasons for Impasse

As with other requests, Complainant has offered to limit these requests geographically, to the ports at Qingdao, China and Tianjin, China, and has clarified that “notice of MCS’s space requirements” is intended to encompass all sailings for which Complainant or any entity acting on behalf of Complainant gave notice of a desire to book cargo, not only sailings for which Complainant actually received a booking number. Complainant has requested, but as of the date of this Motion has not received, information regarding the manner in which Respondent’s booking information is entered and stored in Respondent’s record-keeping systems, and how it may be efficiently extracted from such systems, and remains willing to confer on the least burdensome manner of production of this highly relevant information.

2. Relief Sought

Requests 17 through 19 are relevant to Complainant’s claims that Respondent engaged in a practice of denying Complainant carriage at its contracted rate despite the availability of space for Complainant’s cargo on Respondent’s vessels while providing carriage to other shippers, including shippers without service contracts, in violation of the Shipping Act.

Whether Respondent did, in fact, have space on any sailings from the ports covered by the Service Contract during the period when Complainant was not receiving its contracted space is, of course, highly relevant information. While Complainant is willing to discuss the least burdensome manner of collection and production, the Rules allow Complainant to request data or data compilations “stored in any medium from which information can be obtained either directly or, if

necessary, after translation by the responding party into a reasonably usable form.”²⁵ Complainant therefore requests that Respondent be compelled to answer Requests 17 through 19 in full.

L. RFPs 31–35; Interrogatories 13–14: Respondent’s Refusal to Disclose Relevant Financial Data and Ownership Information Is Baseless, Especially Given the Protections of the Confidentiality Stipulation and Protective Order

Complainant’s Request No. 31: Copies of Your financial statements (audited, if available) for the periods January 1, 2019 through the present, including Your balance sheet(s) or equivalent(s), income statement(s) or equivalent(s), cash flow statement(s) or equivalent(s), and statements of shareholders’ equity or equivalent(s).

Respondent’s Response to Request No. 31. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant’s Request No. 32: Documents sufficient to show Your financial performance from January 1, 2019 through the present, including Your quarterly and annual sales, gross revenues, net revenues, gross margin, gross profits or losses, operating profits or losses, and net profits or losses.

Respondent’s Response to Request No. 32. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant’s Request No. 33: Documents sufficient to show the effect of any force majeure event on Your financial performance from January 1, 2020 through the present.

Respondent’s Response to Request No. 33. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant’s Request No 34: Documents sufficient to show Your ownership and ownership structure from January 1, 2019 through the present.

²⁵ 46 C.F.R. § 502.146(a)(1)(i).

Respondent's Response to Request No. 34. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose ownership information it does not disclose publically [sic].

Complainant's Request No. 35: Documents sufficient to show Your current assets, including any insurance policies available to cover reparations, fees, or costs awarded in this action.

Respondent's Response to Request No. 35. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic]. MSC further objects to this Request on the basis that the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action since there can be no legitimate issue as to MSC's solvency to pay any such amounts.

Complainant's Interrogatory No. 13: Identify each person with knowledge of Your financial performance from January 1, 2019 through the present, including the effects of the global COVID-19 pandemic and any force majeure event on Your financial performance.

Respondent's Response to Interrogatory No. 13 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant's Interrogatory No. 14: Identify each insurance policy available to cover reparations, fees, or costs awarded in this action, including the insurance carrier, effective date(s) of the policy, policy number, and coverage limits.

Respondent's Response to Interrogatory No. 14. MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic]. MSC further objects to this Interrogatory as the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action, since there can be no legitimate issue as to MSC's solvency to pay any such amounts.

Complainant's Argument:

1. Reasons for Impasse

Complainant has acknowledged that it likely would be appropriate for Respondent to designate documents and information responsive to these requests for confidential treatment under the Confidentiality Stipulation and Protective Order, in recognition of the fact that Respondent is a private company that generally does not publicly disclose the information sought, allaying any concerns about the public disclosure of such documents or information. Nonetheless, Respondent has flatly refused to answer Requests 31 through 35 and Interrogatories 13 and 14.

2. Relief Sought

As argued above, Requests 31 through 35 and Interrogatories 13 and 14 are relevant to Respondent's claims of "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and to Respondent's invocation of force majeure as a defense to any alleged nonperformance.²⁶ Respondent itself has placed at issue its financial performance by claiming that it has encountered operational challenges and forces outside of its control that justify its actions (or inaction).

Requests 31 through 35 and Interrogatories 13 and 14 are also relevant to Complainant's claims that Respondent has profited from its alleged practices of denying Complainant carriage at its contracted rate, unfairly discriminating against Complainant, and giving other shippers undue preference by, upon information and belief, offering carriage to other shippers at higher rates, including on the spot market, in violation of the Shipping Act. In addition to showing Respondent's profit motive and the results of its alleged conduct, information about the finances, corporate structure, and ownership of Respondent, as well as any insurance policies applicable to this

²⁶ See Answer ¶¶ 2, 15, 32 & at 17.

proceeding, are relevant to (1) how discovery in this proceeding should be conducted with respect to non-parties, including Respondent's booking agents,²⁷ and (2) the collection of any eventual judgment against Respondent.

Requests 31 through 35 and Interrogatories 13 and 14 are tailored to ascertain information relevant to Complainant's claims and "the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter."²⁸ The scope and time period of the requests are tailored to capture changes in Respondent's financial condition and performance from prior to the global pandemic, which Respondent has placed at issues with its defenses, through the present. While Respondent may be a private entity, it cannot use that status to refuse to produce relevant documents and information, especially given the confidentiality stipulation and protective order in this case. Complainant requests that Respondent be compelled to answer Requests 31 through 25 and Interrogatories 13 and 14 in full.

M. RFPs 36–37: Respondent's Refusal to Disclose its Document Retention Policies Is Baseless

Complainant's Request No. 36: Documents sufficient to show Your policies, procedures, and/or practices concerning the retention or destruction of documents and communications, including emails.

Respondent's Response to Request No. 36. MSC objects to this Request on the basis that the time period relevant to this lawsuit is extremely recent and MSC issued a litigation hold upon becoming aware of the litigation. There is no reason to believe any general document retention policy or practice is of any material relevance.

²⁷ For example, it appears that one of Complainant's main contacts, Thomas DeMarino, is employed by Mediterranean Shipping Company USA Inc. Respondent's counsel refused to disclose on the November 2, 2021 call the relationship between that entity and Respondent, or even whether documents from that entity would be included in Respondent's document production. While some communications to and from Mr. DeMarino have been produced by Respondent, this only highlights the need for MCS Industries to be able to understand the relationships among Respondent, its subsidiaries and affiliates, and relevant intermediaries, and tailor any further discovery requests, including to non-parties, efficiently and effectively.

²⁸ 46 C.F.R. § 502.141(e)(1).

Complainant's Request No. 37: Documents sufficient to show Your retention or destruction of documents and communications concerning this action, including any notice to preserve such evidence.

Respondent's Response to Request No. 37. MSC incorporates its objections to Request No 36. MSC further objects that the litigation hold instructions are privileged.

Complainant's Argument:

1. Reasons for Impasse

Respondent has refused to provide documents responsive to Requests 36 and 37 unless Complainant provides a specific reason to believe documents have been destroyed. Complainant, of course, cannot ascertain what documents did or should exist, or whether they may have improperly been destroyed, without understanding Respondent's policies as requested.

2. Relief Sought

Requests 36 and 37 are relevant to "the existence, description, nature, custody, condition, and location of any documents or other tangible things."²⁹ Respondent argues that the recency of the events at issue in this proceeding obviate the need for such discovery. Given the limited time for discovery under the Scheduling Order and the Rules, however, Complainant is entitled to this information to aid in structuring its further discovery requests and identifying any potential issues without delay. Complainant requests that Respondent be compelled to produce the documents requested by Requests 36 and 37. If Respondent does not have any document retention policies, or failed to preserve documents for this proceeding, then Respondent should be required to so confirm.

²⁹ *Id.*

N. RFP 39; Interrogatory 15: Respondent's Refusal to Disclose Other Allegations of Shipping Act Violations Potentially Conceals Information of Key Relevance to Complainant's Unjust and Unreasonable Practices Claim

Complainant's Request No. 39: All documents and communications, regardless of date, concerning any instances in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Respondent's Response to Request No. 39. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence as to makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint, which are themselves, as noted above, made entirely on the basis of speculation and not personal knowledge of the party swearing to the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Complainant's Interrogatory No. 15: Identify each instance, regardless of date, in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Respondent's Response to Interrogatory No. 15 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, as it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, which are themselves made entirely on the basis of speculation and not personal knowledge of the party swearing to the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Complainant's Argument:

1. Reasons for Impasse

Respondent has flatly refused to provide documents responsive to Request 39 and Interrogatory 15.

2. Relief Sought

Request 39 and Interrogatory 15 are relevant in particular to Count I of the Complaint, which alleges an unjust and unreasonable practice of denying service to Complainant under its service contract in violation of 46 U.S.C. § 41102(c). For that claim, 46 C.F.R. § 545.4 requires, *inter alia*, proof that “[t]he claimed acts or omissions of the regulated entity are occurring on a

normal, customary, and continuous basis”. Clearly, any other shippers’ complaints of similar behavior by Respondent, or other alleged practices in violation of the Shipping Act, are highly relevant to proving the essential elements of that claim, and may reveal the mechanisms by which Respondent allegedly harmed Complainant as well as other shippers. Complainant is willing to limit these particular requests to January 1, 2020 through the present but, with or without that limitation, Complainant is entitled to this critical information, and requests that Respondent be compelled to respond to these requests.

O. Complainant Has Conferred in Good Faith to Resolve These Disputes, But the Parties Have Reached Impasse, as Demonstrated by Respondent’s Utter Refusal to Answer the MCS Interrogatories

In anticipation of the Scheduling Order’s October 8, 2021 deadline to submit discovery disputes concerning the parties’ respective initial Requests for Production, counsel for both parties conferred via telephone on October 5, 2021 and subsequently exchanged letters.³⁰ Complainant thereafter submitted to the Presiding Officer a filing detailing the parties’ disputes on the October 8 deadline,³¹ to which Respondent submitted a response on October 12, 2021.³² Additional correspondence regarding these discovery issues followed.³³ After receiving Respondent’s written responses and objections to the MCS RFPs on October 25, 2021³⁴, Complainant once again wrote to Respondent on October 28, 2021³⁵ and counsel conferred again via telephone on November 2, 2021, as memorialized in a further letter from the undersigned counsel on November 3, 2021.³⁶

³⁰ See Reynolds Decl. ¶¶ 9–12 & Exs. 5–7.

³¹ Dkt. 16.

³² Response of Respondent MSC Mediterranean Shipping Company to Complainant’s “Submission of Disputes Concerning Scope of Initial Request for Production”, Dkt. 17.

³³ Reynolds Decl. Exs. 8–10.

³⁴ *Id.* Ex. 3.

³⁵ *Id.* Ex. 11.

³⁶ See *id.* ¶¶ 17–18 & Ex. 12.

Respondent thereafter made a limited production of documents in response to the MCS RFPs on November 5, 2021, and served objections to the MCS Interrogatories, *which did not contain a single substantive response to any interrogatory*, on November 8, 2021.³⁷

Mindful of the Presiding Officer's admonition in the Scheduling Order that "a scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril,"³⁸ Complainant promptly pursued early meet and confer discussions with Respondent's counsel, seeking to understand and accommodate Respondent's concerns via compromise where appropriate. To ensure that confidentiality concerns are addressed, the parties have entered into a confidentiality stipulation, which the Presiding Officer has entered as a protective order in the case.³⁹ Through these discussions, the parties have been able to reach accommodations on certain of Respondent's objections, and Complainant has offered to further focus the scope of certain of its requests to sailings from the ports at Qingdao, China and Tianjin, China to California between May and August 2021. As noted above, however, the parties remain at an impasse with respect to many other requests, as evidenced by Respondent's utter refusal to respond substantively to any of the MCS Interrogatories.

As set forth above, the MCS Discovery Requests as propounded are reasonable in scope and targeted to obtain information relevant to Complainant's claims and Respondent's defenses in this case. Complainant's proposed compromises further reduce the burden on Respondent in responding to the MCS Discovery Requests. Respondent's refusal to comply with the MCS Discovery Requests, and baseless demands that Complainant make a complete offer of proof before Respondent complies with its obligations under the Rules, are unreasonable, and prejudice

³⁷ *Id.* Ex. 4.

³⁸ Scheduling Order, Dkt. 15 at 2 (citations and quotations omitted).

³⁹ *See* Dkts. 19–20.

Complainant by denying it the very documents and information needed to establish the causes of action it has alleged and rebut the defenses raised by Respondent. This Motion to Compel should be granted.

IV. REQUEST FOR MODIFICATION OF SCHEDULING ORDER

Respondent's delay in production of appropriate responses impacts the parties' ability to complete discovery within the limits of the current Scheduling Order. Under the Scheduling Order, fact depositions are to be completed by December 13, 2021. Despite Complainant's prompt efforts to confer with Respondent, timely notice to the Presiding Officer of potential discovery disputes, and prompt pursuit of subpoenas to non-parties, Respondent's objections and refusals have compromised not only Complainant's ability to prepare adequately for depositions, but even to identify which of Respondent's employees should be deposed.

Complainant also has received a request from counsel for non-party Expeditors International of Washington, Inc. ("Expeditors") for an extension of time in which to comply with the subpoena issued by the Presiding Officer on November 19, 2021. Specifically, in light of schedule conflicts and the upcoming holiday season, Expeditors has requested until **January 10, 2022** to produce documents responsive to the requests for production attached to the subpoena, and to reschedule its deposition, which the subpoena has noticed for **November 30, 2021**, to a date no earlier than **January 10, 2022** (i.e., after Expeditors has completed its document production), with the goal of maximizing the efficiency of that deposition. Complainant does not oppose Expeditors' request (which is broadly consistent with Complainant's own request in this regard) and agrees that the requested extension would facilitate efficiency and avoid prejudice to both Complainant and Expeditors.

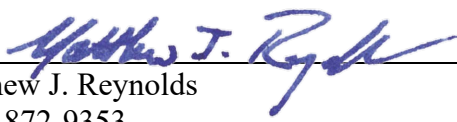
Complainant therefore respectfully requests an extension of the deadline for taking depositions to a date not less than 30 days after the date on which Respondent completes its production of any compelled documents and/or interrogatory responses **or** January 14, 2022, whichever is later, with corresponding extensions of all other discovery deadlines in the case. Should the Presiding Officer determine that no order compelling additional discovery is warranted, and deny this motion, Complainant respectfully requests an extension of the deadline for taking depositions to a date not less than 30 days after the Presiding Officer issues the order denying this Motion **or** January 14, 2022, whichever is later, with corresponding extensions of all other discovery deadlines in the case.

V. CONCLUSION

For the reasons stated above, Complainant respectfully requests that the Presiding Officer (1) compel Respondent to comply with the MCS Discovery Requests and promptly produce the requested documents and information and (2) extend the discovery schedule of this case accordingly.

Dated: November 22, 2021

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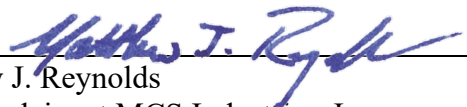
Certificate of Service

I hereby certify that I have this day served the foregoing document, the accompanying Declaration of Matthew J. Reynolds, and the exhibits attached thereto upon Respondent MSC Mediterranean Shipping Company SA by emailing copies of those documents to its counsel of record listed below:

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Dated: November 22, 2021



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